Overview

Purpose	This document provides information about roles, and responsibilities for reporting, reviewing, and evaluating product complaints.
Scope	This document applies to functions that perform activities that are related to reportability decisions (RDs) and regulatory reporting (RR) in Brazil.
Roles	Formally Designated Complaint Handling Unit ▪ Operating Unit (OU) Complaint Unit ▪ Regional Complaint Unit (RCU) - Local Quality Assurance (QA) - Center Led Complaint Handling (CLCH)

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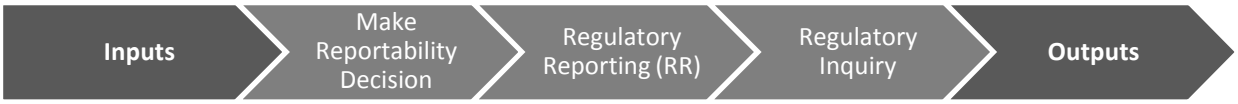
Terms and Definitions

Term	Definition	Source
Adverse Event	Undesired effect, in humans, resulting from the use of products under sanitary surveillance.	RDC 67/2009

Term	Definition	Source
Foreign Experience Report (FER)	Report that may be required when the complaint event did not occur in a specific country, but because the product in question is registered there, that country's Regulatory Body may require a report notifying them of the complaint.	Medtronic
NOTIVISA	Computerized system developed by ANVISA to receive notifications of incidents, adverse events, and technical complaints related to the use of products and services under health surveillance.	ANVISA
Operating Unit Complaint Unit	A unit that executes and maintains processes for receiving, reviewing, and/or evaluating complaints. NOTE: This complaint unit may be comprised of one or more of the following functional groups: ▪ Customer Quality Experience Management (CQXM) ▪ Functions/individuals that contribute to complaint analysis/investigation	Medtronic
Original Equipment Manufacturer (OEM) Product	An external supplier of a finished device, drug, biologic, human tissue or combination product which: ▪ Owns the design and manufacture; ▪ Is designated as the Legal Manufacturer; and ▪ Owns primary regulatory responsibility. Medtronic may perform certain other regulatory actions / responsibilities (e.g., product registration and listing) in specific geographies.	Medtronic
Product Complaint	Any verbal, electronic, or written communication that alleges the presence of faults related to the design, identity, quality, durability, reliability, safety, efficacy, or performance of a product after it is released for distribution/marketing.	RDC 67/2009
Regional Complaint Unit	A complaint-handling unit that resides within the Region that executes certain process steps.	Medtronic
Serious Adverse Event	An Adverse Event that falls within one of the following: a) Leads to death b) Causes permanent impairment or damage to a body structure c) Requires medical or surgical intervention to prevent permanent impairment of a body function or structure d) Requires inpatient hospitalization or prolongation of hospitalization e) Leads to fetal distress, risk, death, or congenital anomaly	RDC 551/2021

Term	Definition	Source
Technovigilance	Team assigned to comply with the vigilance system for adverse events and technical complaints of health products in the post-marketing phase, with a view to recommending the adoption of measures to ensure the protection and promotion of the population's health.	Medtronic

Process Overview



- Complaint

- Decision Rationale
- Regulatory Report
- Record of Inquiry

Responsibility Matrix – Brazil

Portfolio	Operating Unit	RD	Draft RR	Approve RR	Submit RR	FER	Approve FER
Cardiovascular	Cardiac Ablation Solutions (CAS), Cardiac Rhythm Management (CRM), Mechanical Circulatory Support (MCS), Cardiac Surgery, Structural Heart and Aortic Integrated, Coronary and Renal Denervation, Peripheral Vascular Health	CLCH	CLCH	Local QA	Local QA	OU	CLCH
Diabetes	Diabetes	OU/CLCH	CLCH	Local QA	Local QA	OU	CLCH
Medical Surgical	Endoscopy, Surgical, Acute Care & Monitoring (ACM), Ventilation Service and Support (VSS)	CLCH	CLCH	Local QA	Local QA	OU	CLCH

Neuroscience	Cranial and Spinal Technologies (incl. Medicrea, Titan, and Kanghui), Ear/Nose/ Throat, Neuromodulation, Neurovascular, Pelvic Health & Gastric Therapies	CLCH	CLCH	Local QA	Local QA	OU	CLCH

Process Detail

1. Make Reportability Decision

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Review the event and associated information. Additional information may need to be requested to make the RD. Perform all customer communication per 027-WI188, *Customer Communication* or equivalent. ▪ For Original Equipment Manufacturer (OEM) products, reporting responsibility is applicable if Medtronic is the License Holder for the product in Brazil. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the License Holder and therefore has reporting responsibilities. – When making the RD for events involving OEM products, input received from the OEM may be considered as needed to inform the RD. Where Medtronic is responsible for reporting, the final decision will be made per Medtronic process.
2.	Formally Designated Complaint Handling Unit	Process the decision in the complaint handling system according to the tree in Appendix A - Brazil Decision Tree and Appendix C – Code and Rationale Matrix for rationale determination. Document RD in the complaint file with appropriate rationale. NOTE: When following Appendix A, ensure that the question “The event is a Technical Complaint that can lead to Serious Adverse Event” is answered as *Yes* if it is known that: a) the probability of recurrence is not remote, b) the same type of event has caused or contributed to a death or Serious Threat to Public Health in the last two years,

		c) the registration holder needs or would need to conduct an action in order to prevent health danger, or d) there is a possibility of error induced by product project labeling or poor instructions.
3.	OU	Create a reassessment task for the region for changes to the complaint per 027-WI185 *Intake, Assessment, and Complaint Determination*. NOTE: If a Regulatory Report is received from ANVISA that was submitted by a customer/facility, create a reassessment task for the Region. This may be received via mPXR.
4.	Formally Designated Complaint Handling Unit	Review the RD when information is received that could change the initial medical device reporting decision. Review of previously documented RD required when information such as, but not limited to the following is received: ▪ Event clarification ▪ Patient outcome ▪ Alleged failure mode
5.	CLCH	Review and complete the reassessment task
6.	CLCH	Upon notification of a new complaint or information for an existing complaint that requires reassessment of the RD: Review the event/information and document the RD based on the information reasonably known. In the record, document RDs, including reassessed decisions. NOTE: If a Regulatory Report is received from ANVISA that was submitted by a customer/facility, the case should be documented as reportable regardless of decision tree outcome to ensure that a final report can be submitted following investigation.
7.	Formally Designated Complaint Handling Unit	Brazil regulations may require RDs (e.g., Foreign Experience Reports (FER)) for events that occur in other Regions/countries. ▪ Complete any FER decisions timely to ensure regulatory reports are submitted on or before the due date. See *Appendix B - Brazil Foreign Experience Reporting* for FER determinations ▪ For OEM products, FER responsibility is applicable if Medtronic is the License Holder for the product in Brazil. Consult Regulatory Affairs and Supplier Quality as needed to

		confirm whether Medtronic is the License Holder and therefore has reporting responsibilities. ▪ Assessment of the initial FER must occur after completion of complaint investigation. If additional information is received after a reporting decision has been made, reassess the original FER decision in a timely manner per 027-WI185. NOTE: Region notifications may require manual notification to ensure that re-assessment is completed when complaint details are changed (e.g. if information is received via the communication task a manual reassess task may be required). See 027-WI185 for reassessment information. Update the FER or notify the region when the need for the update/notification is identified, even if the complaint investigation has not been re-closed.
8.	CLCH	Document the reporting rationale for the RD for reportable and non-reportable events. Refer to the decision trees in Appendix A and Appendix C – Code and Rationale Matrix, for rationale determination.

2. Regulatory Reporting

Step	Role	Action
1.	CLCH	For events assessed as reportable: ▪ Determine the report type (e.g., initial, 72-Hour, 10 days, or Closure). ▪ Local privacy laws permitting, there may be information requested. See Appendix D - Patient and Product Specific Information.
2.	CLCH	For a reportable event: ▪ Capture the report information per NOTIVISA requirements. ▪ Forward to the Local QA to submit the regulatory report to NOTIVISA NOTE: For events initially reported to ANVISA by a customer/facility no initial report is required, final report should be made after investigation on the original NOTVISA record.

Step	Role	Action
3.	Local QA	Submit the regulatory reports on or before the determined due date. ▪ Maintain a copy of the submitted report in the complaint file. ▪ Follow the information in Appendix E - Reporting to ANVISA for guidance on submitting via the website. ▪ If the report was submitted through the regulatory body's website, receipt or acknowledgement number will be documented.
4.	Local QA	Submit reports in the local language, as required.
5.	Region Complaint Unit	When additional information becomes available after a report is submitted: ▪ Reassess impact of the new information to the RD ▪ Determine if the information qualifies for a follow up report or is to be submitted with the final report.
6.	Formally Designated Complaint Handling Unit	If a report is submitted late (i.e., after the due date) conduct an evaluation to determine the reason for the late submittal per D00528427 *Regulatory Report and Timeliness Evaluation* and local processes.
7.	Local QA	If a receipt (or acknowledgement number) is provided by a regulatory agency, document the information within the complaint file.
8.	Local QA	Perform the following actions when the NOTIVSA website is unavailable: ▪ Submit the report via email to tecnovigilancia@anvisa.gov.br ▪ Indicate the reason that the report was submitted via email instead of through the website.
9.	Region Complaint Unit	Submit a final regulatory report upon completion of the event investigation conclusion.
10.	Region Complaint Unit	Confirm that a customer letter was generated and submitted, when applicable.

3. Regulatory Inquiry

NOTE: Regulatory authorities may submit inquiries or request additional information from the OU or Region.

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Process regulatory inquiries per D00224727, *Customer Quality Regulatory Inquiries*

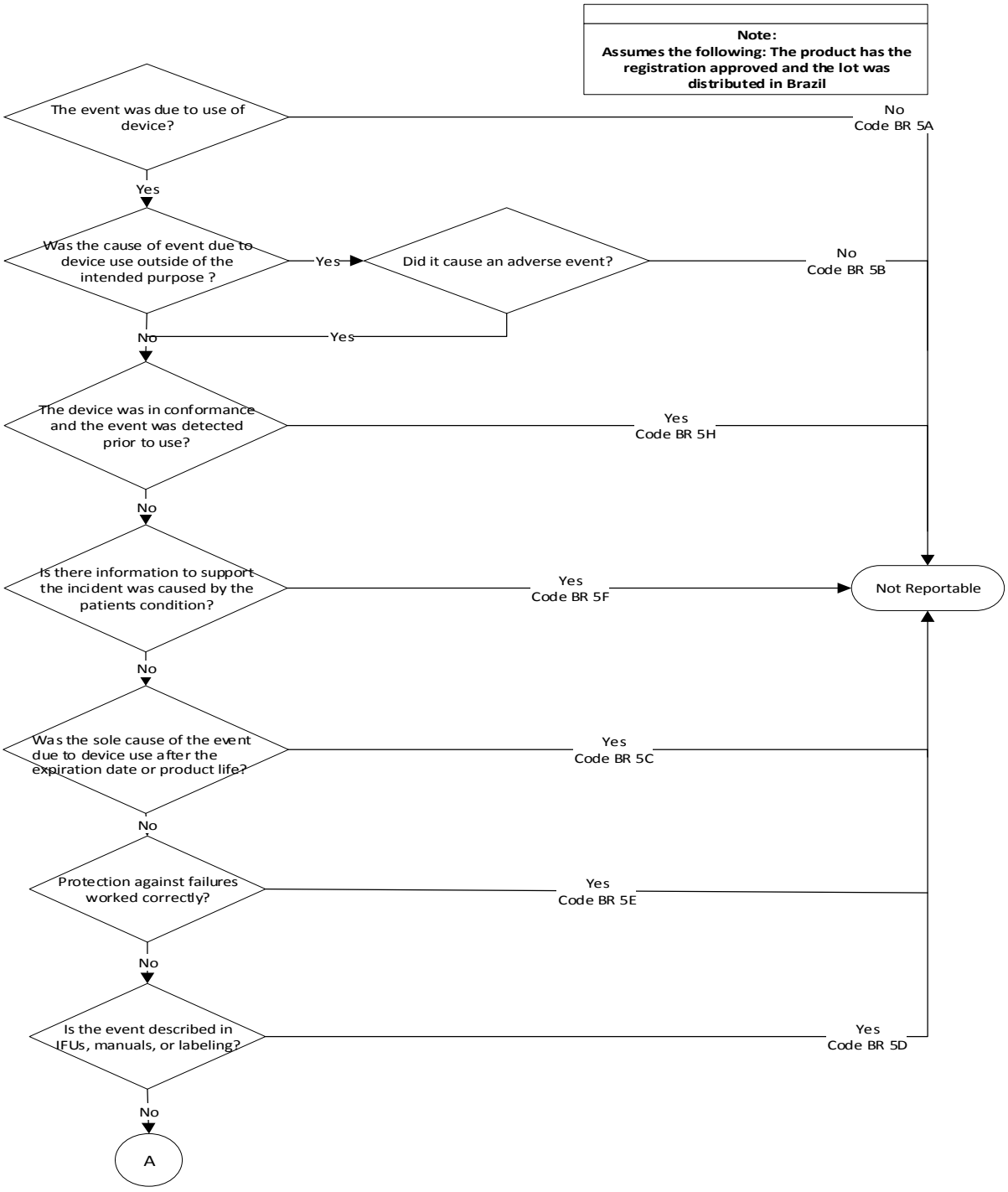
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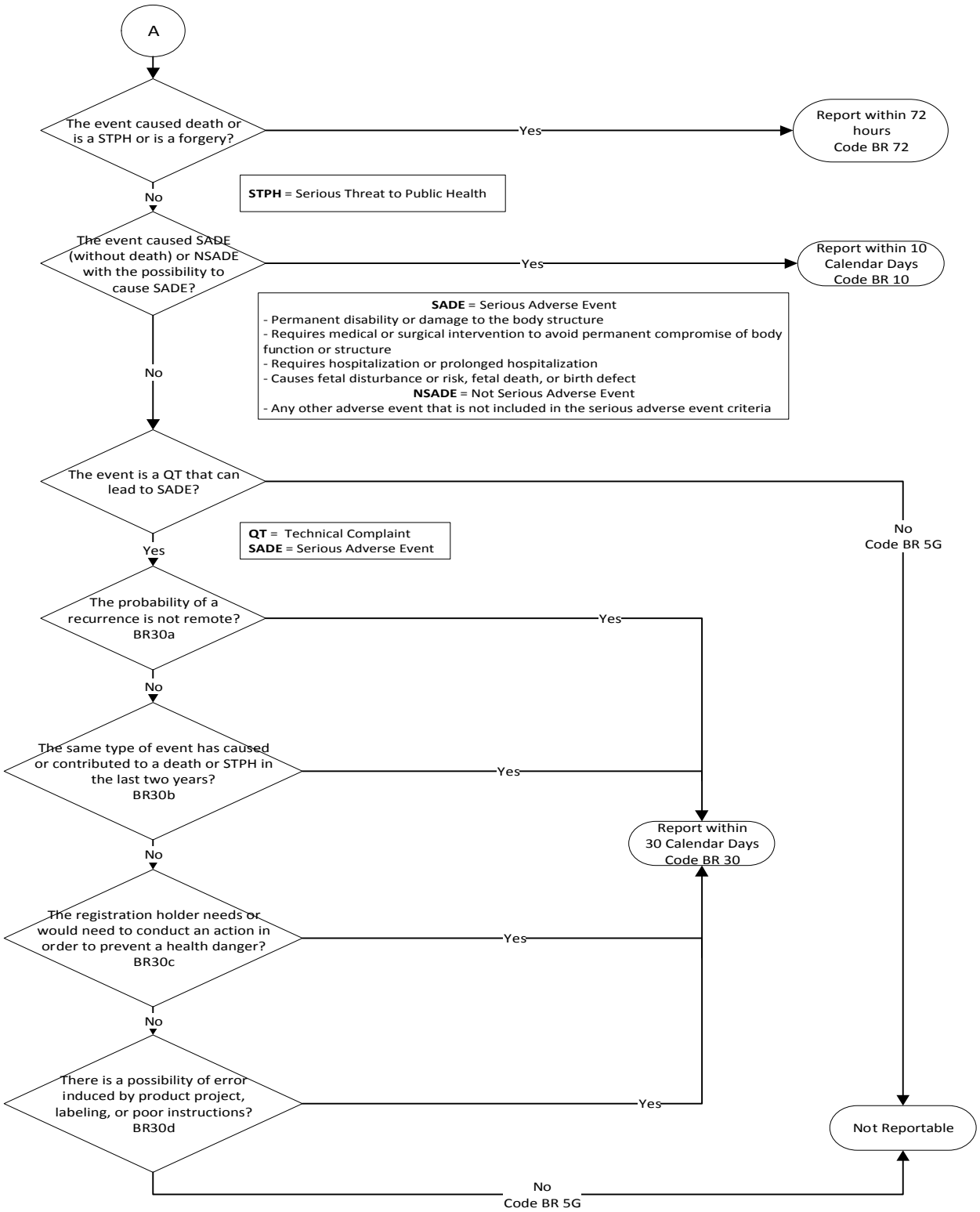
Number	Title
027-WI188	Customer Communication
D00224727	Customer Quality Regulatory Inquiries
D00528427	Regulatory Report Timeliness Evaluation

Quality Records

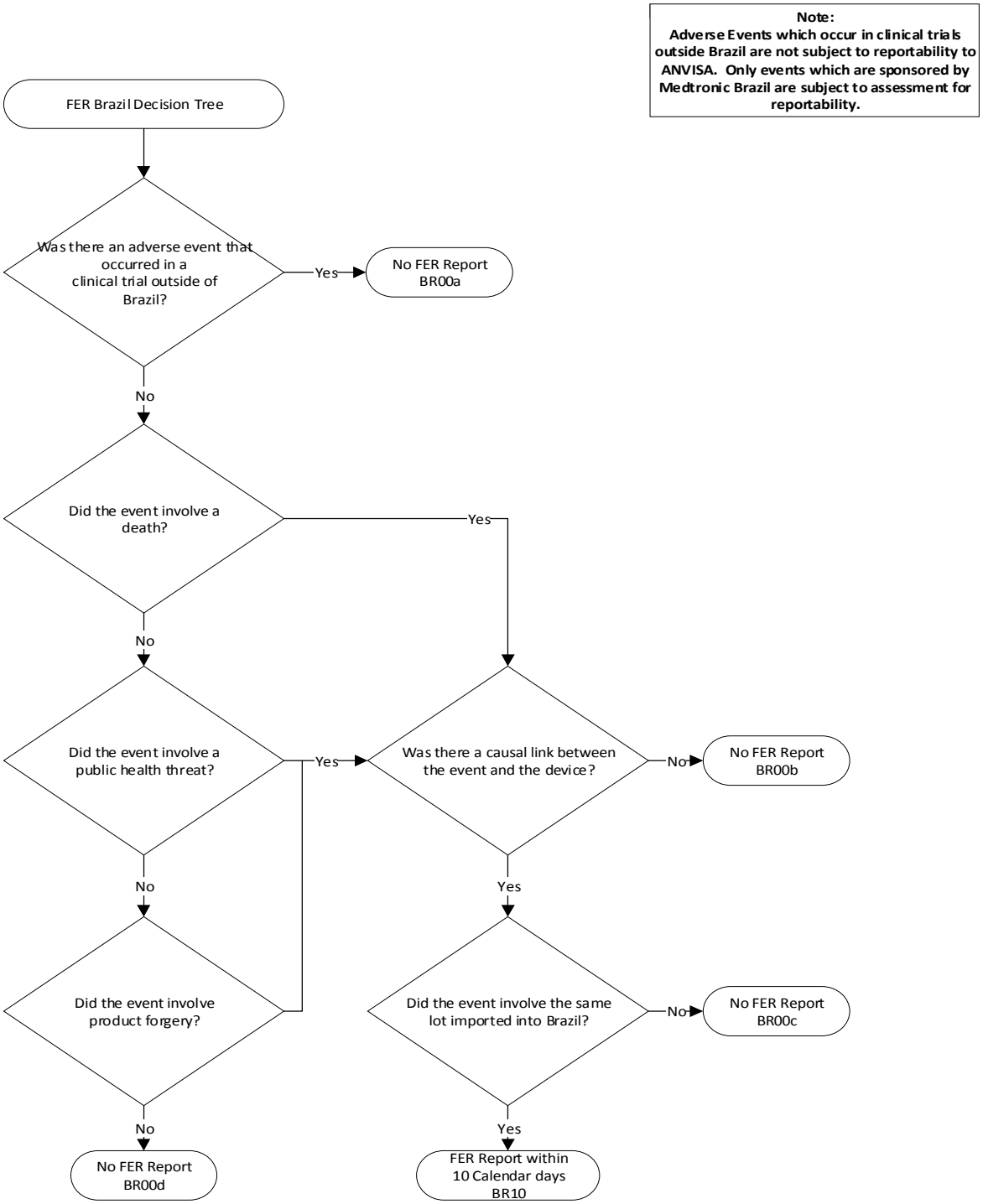
Quality Record	Required Approvals
Complaint Record	None

Appendix A – Brazil Decision Tree




A
The event caused death or is a STPH or is a forgery?
Yes
Report within 72 hours Code BR 72
No
STPH = Serious Threat to Public Health
The event caused SADE (without death) or NSADE with the possibility to cause SADE?
Yes
Report within 10 Calendar Days Code BR 10
SADE = Serious Adverse Event
- Permanent disability or damage to the body structure
- Requires medical or surgical intervention to avoid permanent compromise of body function or structure
- Requires hospitalization or prolonged hospitalization
- Causes fetal disturbance or risk, fetal death, or birth defect
NSADE = Not Serious Adverse Event
- Any other adverse event that is not included in the serious adverse event criteria
No
The event is a QT that can lead to SADE?
No Code BR 5G
QT = Technical Complaint
SADE = Serious Adverse Event
Yes
The probability of a recurrence is not remote? BR30a
Yes
No
The same type of event has caused or contributed to a death or STPH in the last two years? BR30b
Yes
Report within 30 Calendar Days Code BR 30
No
The registration holder needs or would need to conduct an action in order to prevent a health danger? BR30c
Yes
No
There is a possibility of error induced by product project, labeling, or poor instructions? BR30d
Yes
Not Reportable
No Code BR 5G

Appendix B – Brazil Foreign Experience Reporting



Appendix C – Code and Rationale Matrix

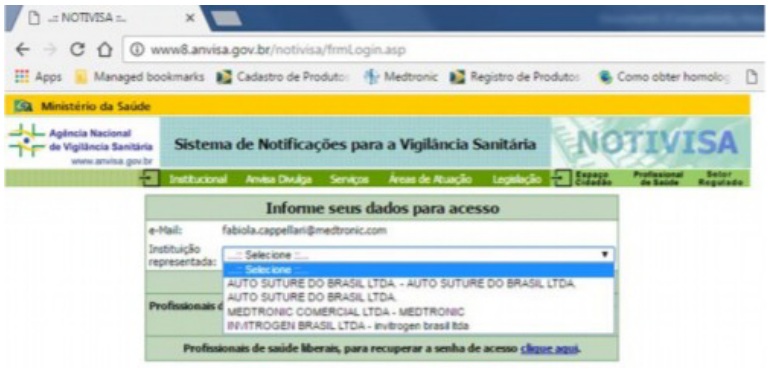
Code	Rationale
BR5A	The event was not due to use of the device
BR5B	Not an adverse event but event was due to device use in disagreement with its purpose
BR5C	Exclusive cause of the event was due to the device used after expiration date or its product life
BR5D	The event is described in the instructions for use (IFU), manual, or labeling
BR5E	Protection against failures worked correctly
BR5F	Concrete evidence exists to conclude that the incident was caused by the patient's pre-existing condition
BR5G	The event is a technical report that would not lead to a serious adverse event
BR5H	The device was in conformance and the event was detected before use
BR10	The event caused a Serious Adverse Event (SADE) (without death), a non serious adverse event (NSADE) with the possibility of causing SADE, or a FER (requires a report within 10 days)
BR30 a/b/c/d	Technical complaint that could lead to a SADE
BR72	The event caused death or is a serious threat to public health or a forgery
BR00a	No FER is required;the Clinical trial occur outside Brazil
BR00b	No FER is required;no causal relationship exists between the event and device
BR00c	No FER is required;the lot was not imported into Brazil
BR00d	No FER is required; no death, product forgery, or public health threats

Appendix D – Patient and Product Specific Information

Data Field	Brazil
Date of birth or age	Not required
Gender	
Patient weight	
Patient identifier	Optional
Relevant medical history	Not required
Patient height	
Patient phone number	
If event abated after use was stopped or dose was reduced	
Location where the device was used	Optional
Operator of the device at the time of event	Not required
Physician or professional's opinion on relationship to device	
Implant date (if applicable)	
Explant date (if applicable)	
Report source	Optional

Data Field	Brazil
Device disposition or location	Not required
Name of institution in which the implant was performed (if applicable)	
Nonproprietary name of the medical device for human use	
Trade name of the medical device for human use	
Lot or serial number of the medical device for human use	
Name and address of the manufacturer	
Name and address of the importer	
Sanitary registry number	

Appendix E – Reporting to ANVISA

Step	Role	Action
1.	CLCH and Local QA	Document the complaint information in the report. Perform the following actions to log into the NOTIVISA website: ▪ Go to http://www8.anvisa.gov.br/notivisa/frmlogin.asp ▪ Enter the email and password for the corresponding Responable Tecnica ▪ Upload the form
2.		▪ Use the drop down to select the institution that holds the registration for the product that is being reported. ▪ Click Access 
3.		Select the **Notify** option in the left panel

Step	Role	Action
		 NOTES: ▪ The user will be directed to a screen containing the mandatory fields to be applied. ▪ Once the entries are completed the NOTIVISA system will generate a number indicating authorization to submit the report. 

Step	Role	Action
4.		Save the submission to NOTIVISA as a PDF with a file name that contains the Regulatory and Event number, or patient name (e.g., Diabetes OU) Attach the submission to the complaint file